fair in a broad sense. The NLD won a landslide victory with an estimated eighty-two per cent of the vote, but the military declined to transfer power for want of a constitution at that time. After years of rule, the Tatmadaw government adopted a seven-step road map for Myanmar's democratic transformation. As part of the process, a new election commission was established in April 2009 under the terms of the 2008 Constitution of Myanmar. It was formed with eighteen members chaired by U Thein Soe, who came from a military background.[3]

The first general election the new commission took responsibility for under the new constitution was held in 2010 (see Horsey 2012; Skidmore and Wilson 2012). It prepared for the electoral process in just eight months, during which time all necessary preparations, such as delimitation of constituencies, enacting of rules and regulations, formation of sub-commissions, preparation for polling booth stations, calling for candidates, and many other things, had to be done. Training for the sub-commissioners as well as the members of polling booths was conducted urgently. Voter education could not reach out to all people, especially in remote areas. Unfortunately, the lack of census data as well as mismanagement and lack of funding hampered the quality of the electoral process.

The conduct and results of the election, which the NLD boycotted, were criticized by locals and the international community. The major criticism of the election commission was that the USDP, which was formed under the leadership of retired military officers, won a landslide victory with the aid of advance votes. Other criticisms and questions concerned the commission's lack of experience and capacity, the process for appointment of ballot officers, restrictions on party campaigns, flaws in the list of registered voters, and ambiguity between practical and legal circumstances. The commission was in a dilemma concerning its power and function, as legally it was supposed to be neutral but in fact it was obligated to comply with government instructions and enable the USDP victory.

When the new administration had been set up by President U Thein Sein, the election commission was classed as a union-level organization with the nomination of the president and approval of the Hluttaw, or parliament, in accordance with the 2008 Constitution. The UEC was criticized again because it was chaired by U Tin Aye, a former senior military officer who was appointed by presidential nomination. Almost all members came from the former election commission, although they were mostly civilians.[4]

The year 2015 was the last in the term of President U Thein Sein's